

23TRCV02800 23TRCV02800

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-10

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Case Number: 23TRCV02800 Hearing Date: August 10, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

SUSANNE ROSE

, et al.;

Plaintiffs,

vs.

OCEAN TEN, LLC

, et al.;

Defendants.

Case

No.:

23TRCV02800

Hearing

Date:

August
10, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT BD MANAGEMENT COMPANY, LLC'S MOTION
FOR PROTECTIVE ORDER

MOVING PARTY: Defendant, BD Management
Company, LLC

RESPONDING PARTY: Plaintiff, Nick Saba, Sr.

(1)

Defendant

BD Management Company, LLC's Motion for Protective Order is DENIED pursuant to Code of Civil Procedure sections 2030.030, 2030.040, 2030.050, and 2030.090, and Civil Code section 3295.

The Court considers the moving papers filed on June 16, 2026, the opposition brief filed on July 27, 2026, and the reply brief filed on August 3, 2026.

BACKGROUND

Factual Background

On August 24, 2023, plaintiffs Susanne Rose, Nick Saba, Sr., Jeanette Rowland, Nick Saba, Jr., Shameka Fleming, Marquan Pikes, Malaya Pikes, and Mashaila Pikes (collectively, "Plaintiffs") filed a Complaint against defendants Ocean Ten, LLC ("Ocean Ten"), BD Management Company ("BD Management"), LLC, Beach Front Property Management, Bryan Bohlinger, and Patricia Padilla, and DOES 1 through 50. On November 15, 2023, Plaintiffs filed a First

Amended Complaint ("FAC"). On February 22, 2024, Plaintiffs filed a Second Amended Complaint ("SAC").

On June 27, 2025, the Court granted Plaintiffs' Motion for Leave to File a Third Amended Complaint ("TAC"), allowing Plaintiffs to add a single cause of action for Tenant Harassment under Civil Code section 1940.2. The TAC alleges the following causes of action: (1) Breach of the Warranty of Habitability (Common Law); (2) Breach of the Warranty of Habitability (Statutory); (3) Breach of the Covenant of Quiet Enjoyment; (4) Breach of Contract; (5) Private Nuisance; (6) Discriminatory Practices on Account of Disability and Medical Condition (FEHA § 12955); (7) Violation of the Unruh Civil Rights Act (Civ. Code § 51); (8) Negligence; (9) Intentional Infliction of Emotional Distress; (10) Retaliation; (11) Unfair Business Practices (Cal. Bus. & Prof. Code § 17200); and (12) Tenant Harassment (Civ. Code § 1940.2).

On April 11, 2026, Nick Saba, Sr. served BD Management with Special Interrogatories, Set Three, encompassing Special Interrogatories Nos. 142 through 157. (Declaration of Twiggy Alvarez ("Alvarez Decl."), ¶ 2, Exh. A.) On May 13, 2025, BD Management provided responses to this discovery request. (Alvarez Decl., ¶ 2, Exh. B.)

On June 7, 2026, Plaintiffs' counsel issued a meet-and-confer letter addressing BD Management's responses. (Alvarez Decl., ¶ 3, Exh. C.) The letter contended that the responses were evasive and deficient, elaborating on the appropriateness of the interrogatories under Civil Code section 3295. (Alvarez Decl., ¶ 3, Exh. C.)

On June 9, 2026, BD Management's counsel replied to the meet-and-confer letter, articulating BD Management's interpretation of Civil Code section 3295. (Alvarez Decl., ¶ 4, Exh. D.) The response asserted that the interrogatories purportedly violated this statute and emphasized that obtaining financial information necessitates a pretrial motion and a court order. (Alvarez Decl., ¶ 4, Exh. D.) Furthermore, BD Management's counsel sought an extension to further meet and confer, provide additional discovery responses, and/or pursue a protective order. (Alvarez Decl., ¶ 4, Exh. D.)

In turn, Plaintiffs' counsel asserted that the trial was scheduled for August 3, 2026, and indicated that the proposed discovery deadline occurred less than one week prior to the trial date.

(Alvarez Decl., ¶ 5, Exh. E.) They maintained that further meetings were unwarranted due to their "diametrically opposite view of the purpose of Civil Code section 3295." (Alvarez Decl., ¶ 5, Exh. E.) Additionally, Plaintiffs' counsel indicated their readiness to file a motion to compel. (Alvarez Decl., ¶ 5, Exh. E.)

On June 10, 2026, BD Management's counsel informed Plaintiffs' counsel that the trial date had been incorrectly stated and was actually scheduled for January 2027. (Alvarez Decl., ¶ 6, Exh. E.) They reiterated their request for an extension in light of this clarification, proposing that BD Management would grant a reciprocal extension for filing a motion to compel. (Alvarez Decl., ¶ 6, Exh. E.) On the same day, Plaintiffs' counsel denied the extension request, asserting that BD Management had delayed, as "time to seek a protective order is before responses are provided." (Alvarez Decl., ¶ 6, Exh. E.)

BD Management's counsel opted not to pursue further discussions, concluding that additional meetings would likely prove unproductive, given Plaintiffs' counsel's unwillingness to grant an extension and the consequent impasse between the parties. (Alvarez Decl., ¶ 7.)

LEGAL STANDARDS

"The court may, for good cause, grant any defendant a protective order requiring the plaintiff to produce evidence of a prima facie case of liability for damages pursuant to Section 3294, prior to the introduction of evidence of: ¶ (1) The profits the defendant has gained by virtue of the wrongful course of conduct of the nature and type shown by the evidence. ¶ (2) The financial condition of the defendant." (Civ. Code, § 3295, subd. (a).)

"No pretrial discovery by the plaintiff shall be permitted with respect to the evidence referred to in paragraphs (1) and (2) of subdivision (a) unless the court enters an order permitting such discovery pursuant to this subdivision. However, the

plaintiff may subpoena documents or witnesses to be available at the trial for the purpose of establishing the profits or financial condition referred to in subdivision (a), and the defendant may be required to identify documents in the defendant's possession which are relevant and admissible for that purpose and the witnesses employed by or related to the defendant who would be most competent to testify to those facts. Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294. Such order shall not be considered to be a determination on the merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial." (Civ. Code, § 3295, subd. (c), emphasis added.)

"The court shall restrict the frequency or extent of use of a discovery method provided in Section 2019.010 if it determines either of the following: ¶ (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. ¶ (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation." (Code Civ. Proc., § 2019.030, subd. (a).) "The court may make these determinations pursuant to a motion for a protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2019.030, subd. (b).)

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2019.030, subd. (c).)

Pursuant to Code of Civil Procedure section 2030.090, "[w]hen interrogatories have been propounded, the responding party, and any other party or affected natural person or organization may promptly move for a protective

order. This motion shall be accompanied

by a meet and confer declaration under Section 2016.040. ¶ (b)

The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: ¶ (1)

That the set of interrogatories, or particular interrogatories in the set, need not be answered. ¶ (2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted.

¶ (3) That the time specified in Section 2030.260 to respond to the set of interrogatories, or to particular interrogatories in the set, be extended.

¶ (4) That the response be made only on specified terms and conditions.

¶ (5) That the method of discovery be an oral deposition instead of interrogatories to a party. ¶ (6) That a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a certain way. ¶ (7) That some or all of the answers to interrogatories be sealed and thereafter opened only on order of the court." (Code Civ. Proc., § 2030.090, subs. (a)-(b).)

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.090, subd. (c).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).) "Misuses of the discovery process

include ... (a) Persisting, over objection and without substantial justification, in an attempt to obtain information or materials that are outside the scope of permissible discovery. ¶ (b) Using a discovery method in a manner that does not comply with its specified procedures.

¶ (c) Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. ... (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery.” (Code Civ. Proc., § 2023.010, subds. (a)-(c), (h).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

BD Management was required to meet and confer with Nick Saba, Sr. before filing this motion. (Code Civ. Proc., § 2030.090, subd. (a).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion [to compel] shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On June 7, 2026, Plaintiffs’ counsel issued a meet-and-confer letter addressing BD Management’s responses. (Alvarez Decl., ¶ 3, Exh. C.) The letter contended that the responses were evasive and deficient, elaborating on the appropriateness of the interrogatories under Civil Code section 3295. (Alvarez Decl., ¶ 3, Exh. C.)

On June 9, 2026, BD Management's counsel replied to the meet-and-confer letter, articulating BD Management's interpretation of Civil Code section 3295. (Alvarez Decl., ¶ 4, Exh. D.) The response asserted that the interrogatories purportedly violated this statute and emphasized that obtaining financial information necessitates a pretrial motion and a court order. (Alvarez Decl., ¶ 4, Exh. D.) Furthermore, BD Management's counsel sought an extension to further meet and confer, provide additional discovery responses, and/or pursue a protective order. (Alvarez Decl., ¶ 4, Exh. D.)

In turn, Plaintiffs' counsel asserted that the trial was scheduled for August 3, 2026, and indicated that the proposed discovery deadline occurred less than one week prior to the trial date.

(Alvarez Decl., ¶ 5, Exh. E.)

They maintained that further meetings were unwarranted due to their "diametrically opposite view of the purpose of Civil Code section 3295." (Alvarez Decl., ¶ 5, Exh. E.) Additionally, Plaintiffs' counsel indicated

their readiness to file a motion to compel.

(Alvarez Decl., ¶ 5, Exh. E.)

On June 10, 2026, BD Management's counsel informed Plaintiffs' counsel that the trial date had been incorrectly stated and was actually scheduled for January 2027. (Alvarez Decl., ¶ 6, Exh.

E.) They reiterated their request for an

extension in light of this clarification, proposing that BD Management would

grant a reciprocal extension for filing a motion to compel. (Alvarez Decl., ¶ 6, Exh. E.) On the same day, Plaintiffs' counsel denied

the extension request, asserting that BD Management had delayed, as "time to seek a protective order is before responses are provided." (Alvarez Decl., ¶ 6, Exh. E.)

BD Management's counsel opted not to pursue further discussions, concluding that additional meetings would likely prove unproductive, given Plaintiffs' counsel's unwillingness to grant an extension and the consequent impasse between the parties. (Alvarez Decl., ¶ 7.)

Accordingly, the Court finds that BD Management sufficiently met and conferred with Nick Saba, Sr. before filing this motion.

DISCUSSION

BD Management moves for a protective order to avoid responding further to Special Interrogatories, Set Three, which includes Special Interrogatories Nos. 142 through 157. This request is made in accordance with Code of Civil Procedure sections 1987.1, 2030.030, 2030.040, 2030.050, and 2030.090, as well as Civil Code section 3295. (Motion, pp. 2:2-5, 3:9-5:14.)

However, the Court observes that Code of Civil Procedure section 1987.1 applies only to situations involving “the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition[.]” through the use of a subpoena. (Code Civ. Proc., § 1987.1, subd. (a).) In light of the fact that there is no subpoena involved in this case, the Court will refrain from evaluating the merits of the motion under Code of Civil Procedure section 1987.1. Rather, the analysis will focus on Code of Civil Procedure sections 2030.030, 2030.040, 2030.050, and 2030.090, as well as Civil Code section 3295.

Timeliness

Plaintiffs contend that the motion should be denied on the grounds that BD Management “did not promptly move for a court order.” (Opp., p. 6:17.)

Initially, Plaintiffs refer to an unnamed “practice guide” that states a “motion for protective order must be made within the time period that the response to the discovery was due, i.e. within the thirty days.” (Opp., p. 6:18-19.) However, Plaintiffs fail to identify this practice guide for the Court’s examination. Furthermore, the Court notes that practice guides do not constitute compelling or binding authority. As articulated in *Aixtron, Inc. v. Veeco Instruments, Inc.* (2020) 52 Cal.App.5th 360, 400, “While secondary sources like practice guides and treatises are not compelling authority, they may be persuasive when there is an absence of precedent. [Citation.] But such sources ‘certainly are not binding’ [citation], especially

when, as here, they do not cite any authority for the asserted rule. In the absence of any relevant precedent, we return to the language of the statute.”

Second, Plaintiffs cite Code

of Civil Procedure section 2030.090, subdivision (b)(1), which states, “The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted

annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: ¶ (1)

That the set of interrogatories, or particular interrogatories in the set, need not be answered.” (Opp., p. 6:19-21.)

Based on this statute,

Plaintiffs assert that “[t]he court cannot make an order that the interrogatory need not be answered, when in fact the defendant already answered the interrogatories, albeit with objections.”

(Opp., p. 6:21-23.) This interpretation

is misplaced. The statute does not imply

that a protective order may only be granted if responses have not been provided. Rather, the language indicates

that the Court possesses the authority to provide directions beyond those explicitly stated in the statute. Accordingly,

the Court may determine that BD Management is not required to provide further responses.

Finally, Plaintiffs contend that

“[a]ll potential objections to a discovery request, including the right to a protective order must be asserted within the time allowed by law for the defendant to respond to the discovery.”

(Opp., p. 6:23-25.) They cite Scottsdale

Ins. Co. v. Superior Court (1997) 59 Cal.App.4th 263, asserting that it

holds “that such an objection must be made before responses to the discovery are due and not after.” The Court observes that the Court of Appeal

did not specifically address whether the right to a protective order may be

asserted within the statutory time frame for a response to discovery. Instead, the Court of Appeal concluded that “the objection based on the protective order must be withdrawn because the court had denied the protective order.” (Scottsdale

Ins. Co. v. Superior Court (1997) 59 Cal.App.4th 263, 268.)

Consequently, the Court does

not find the motion to be untimely.

Civil Code section 3295

BD Management asserts that “Civil Code § 3295 explicitly prohibits the conduct [Nick Saba, Sr.] clearly commits and the information he seeks: the financial condition of the defendant.” (Motion, p. 5:13-14.)

“No pretrial discovery by the plaintiff shall be permitted with respect to the evidence referred to in paragraphs (1) and (2) of subdivision (a) unless the court enters an order permitting such discovery pursuant to this subdivision. However, the plaintiff may subpoena documents or witnesses to be available at the trial for the purpose of establishing the profits or financial condition referred to in subdivision (a), and the defendant may be required to identify documents in the defendant’s possession which are relevant and admissible for that purpose and the witnesses employed by or related to the defendant who would be most competent to testify to those facts.

Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294. Such order shall not be a determination on the merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial.” (Civ. Code, § 3295, subd. (c), emphasis added.)

Upon reviewing Nick Saba, Sr.’s Special Interrogatories, Set Three, the Court observes that these interrogatories are confined to the exceptions permitted by Civil Code section 3295, subdivision (c). Nick Saba, Sr. seeks that BD Management identify documents in its possession that are relevant and admissible for the purpose of establishing its profits or financial condition, the identities of witnesses employed by or associated with BD Management who would be competent to testify regarding these matters, and the duration of time these individuals have worked with/for the company. (Alvarez Decl., Exh. A.)

However, because Nick Saba, Sr.'s Special Interrogatories, Set Three, does not define "identify" in the context of the documents, the Court will apply the plain meaning of the term, interpreting "identify" to mean naming and providing a basic description of the relevant document. This interpretation does not compel BD Management to disclose comprehensive information regarding its financial status when identifying the documents, as such disclosure would contradict Civil Code section 3295, subdivision (c).

Additionally, BD Management argues that the motion should be granted on the grounds that Nick Saba, Sr. has not filed a motion to compel BD Management to disclose its financial condition as mandated under Civil Code section 3295, subdivision (c). (Motion, p. 6:3-28.) The Court does not concur with this argument.

Nick Saba, Sr. would only be required to file such a motion if he were seeking "evidence of: ¶ (1) The profits the defendant has gained by virtue of the wrongful course of conduct of the nature and type shown by the evidence. ¶ (2) The financial condition of the defendant[.]" outside of the exceptions permitted by Civil Code section 3295, subdivision (c). (Civ. Code, § 3295, subs. (a), (c).) However, as Nick Saba, Sr. is not pursuing this information, there is no necessity for him to file a motion to compel.

Furthermore, BD Management contends that Nick Saba, Sr.'s interrogatories are premature, stating that a "trial court may [only] permit the discovery of a defendant's financial condition after liability has been determined." (Motion, p. 6:22-23.) This assertion holds merit only if Nick Saba, Sr. is seeking forbidden financial information without having filed a motion to compel it. However, Nick Saba, Sr. is not requesting this information, thus rendering his interrogatories neither premature nor inappropriate.

Code of Civil Procedure sections 2030.040
and 2030.050

BD Management maintains that Nick Saba, Sr. has not complied with Code of Civil Procedure section 2030.050(8) because his attorney has failed to explain why "the complexity or the quantity of issues in the instant lawsuit" necessitates BD Management's responses to Special Interrogatories Nos. 142 through 157.

(Motion, p. 7:3-17.) The Court disagrees.

“Except as provided in Section 2030.070, no party shall, as a matter of right, propound to any other party more than 35 specially prepared interrogatories. If the initial set of interrogatories does not exhaust this limit, the balance may be propounded in subsequent sets. ¶ Unless a declaration as described in Section 2030.050 has been made, a party need only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance, under Section 2030.240, on the ground that the limit has been exceeded.” (Code Civ. Proc., § 2030.030, subds. (b)-(c).)

In the present case, Nick Saba, Sr. has issued more than 35 special interrogatories, as indicated by their numbering, Nos. 142 through 157. (Alvarez Decl., Exh. A.) Consequently, a declaration as outlined in Section 2030.050 is necessary.

In relevant part, Code of Civil Procedure section 2030.050(8) stipulates that the declarant must assert: “This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because _____. (Here state each factor described in Section 2030.040 that is relied on, as well as the reasons why any factor relied on is applicable to the instant lawsuit.)” (Code Civ. Proc., § 2030.050(8).) Moreover, “[s]ubject to the right of the responding party to seek a protective order under Section 2030.090, any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following: ¶ (1) The complexity or the quantity of the existing and potential issues in the particular case. ¶ (2) The financial burden on a party entailed in conducting the discovery by oral deposition. ¶ (3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.” (Code Civ. Proc., § 2030.040, subds. (a)-(b).)

In this instance, declarant

Ogochukwu Victor Onwaeze states: "This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because of ¶ 1. the complexity or the quantity of issues in the instant lawsuit. The lawsuit involves the landlord and tenant relationship between the parties that spanned several years. Plaintiffs complaint includes a prayer for punitive damages and these interrogatories are narrowly limited to the issue of networth and financial condition of responding party as permitted by Civil Code section 3295. ¶ 2. The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought." (Alvarez Decl., Exh. A, Declaration of Ogochukwu Victor Onwaeze re: SROG ("Onwaeze Decl. re: SROG"), ¶ 8.)

While the second factor is deemed insufficient due to its failure to clarify its application to this case, the Court finds the first factor to be adequate. Onwaeze states: "The lawsuit involves the landlord and tenant relationship between the parties that spanned several years. Plaintiffs complaint includes a prayer for punitive damages and these interrogatories are narrowly limited to the issue of networth and financial condition of responding party." (Onwaeze Decl. re: SROG, ¶ 8.) This explanation is more substantive than a mere assertion of complexity in the case.

Overboard, Oppressive, Burdensome, and
Privacy Issues

BD Management asserts that "[i]t is clear that these demands, spanning 'January 1, 2016 to the date of the responses' and therefore over a decade, are extremely overbroad, burdensome, and grossly infringe on BD Management s employees' privacy rights." (Motion, p. 8:1-3.) The Court disagrees.

Initially, the Court determines that the requests are not overbroad or burdensome solely due to their decade-long span. The information sought is pertinent and will enable Nick Saba, Sr. to better assess BD Management's financial condition as appropriate.

Furthermore, the Court concludes that BD Management has not met its burden of proof to justify withholding its employees' identities and dates of employment.

Article 1 of the California

Constitution recognizes a constitutional right to privacy, which "protects an individual's reasonable expectation of privacy against a serious invasion." (Faunce v. Cate (2013) 222 Cal.App.4th 166, 171.) Under California law, even highly relevant, non-privileged information may be shielded from discovery if its disclosure would violate a person's inalienable right to privacy. (See *Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) The right to privacy protects the individual's reasonable expectation of privacy against a serious invasion. (Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 370.) In general, when evaluating a discovery dispute that involves a privacy claim, the trial court should apply the framework outlined in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1 (Hill).

First, a claimant must

demonstrate that they have a "legally protected privacy interest." (Hill, supra, 7 Cal.4th at p. 35.) Second, the claimant must show that they have a reasonable expectation of privacy given the circumstances, which include the customs, practices, and physical settings surrounding particular activities. (Id. at pp. 36-37.) Third, the invasion of privacy must be serious in terms of its nature, scope, and actual or potential impact. (Id. at p. 37.) If there is a reasonable expectation of privacy and the invasion of privacy is serious, then the court must balance the privacy interest at stake against other competing or countervailing interests. (Id. at pp. 37-40.)

The California Supreme Court

has clarified that when applying the Hill analysis, the initial burden of demonstrating a privacy interest rests with the party asserting such an interest. (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.) The Court has refuted case law that mandates a party seeking the discovery of private information to prove a compelling interest; instead, the responsibility lies with the party opposing the discovery to delineate the extent and seriousness of the anticipated invasion of privacy. (Id. at p. 557.) "What suffices to justify an invasion will...vary according to the context." (Ibid.) Only obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. (Id. at p. 556.)

“The custodian [of private information] has the right, in fact the duty, to resist attempts at unauthorized disclosure and the person who is the subject of [it] is entitled to expect that his right will be thus asserted. [Citation.] And, of course, the custodian of such private information may not waive the privacy rights of persons who are constitutionally guaranteed their protection.” (Board of Trustees v. Superior Court (1981) 119 Cal.App.3d 516, 525-526, internal citation and quotations omitted.)

BD Management fails to demonstrate the existence of a “legally protected privacy interest” that would warrant the exclusion of its employees’ identities and dates of employment. BD Management provides no pertinent statutes or case law. Additionally, BD Management does not attempt to demonstrate that its employees have a reasonable expectation of privacy given the circumstances, which include the customs, practices, and physical settings surrounding particular activities, and that the invasion of privacy is serious in terms of its nature, scope, and actual or potential impact.

Accordingly, the Court DENIES BD Management’s motion for a protective order.

ORDERS

1) Defendant

BD Management Company, LLC’s Motion for Protective Order is DENIED.

2) BD

Management is ordered to give notice of the Court’s ruling.

IT IS SO ORDERED.

DATED: August 10, 2026

Tamara
Hall

Judge
of the Superior Court